

separately presented as a distinct count.

Plaintiff may file and serve a second amended complaint within 30 days. If she does not do so, the Court will take that as an election not to amend and will accordingly dismiss the action.

Conclusion

Defendant's demurrer is **sustained with leave to amend**. It appears possible the Plaintiff may be able to properly allege federal claim(s) that are not barred by the failure to file a government claim and which may not be barred by the applicable statute of limitations given her son's status as a minor.

If Plaintiff contests this tentative ruling to seek leave to amend beyond what has been granted, she should appear at the hearing (Zoom okay) prepared to explain exactly what other amendments she has in mind and why they would be effective and permissible.

14. 9:00 AM CASE NUMBER: C25-02495
CASE NAME: JAMES STROUT VS. JENNIFER HOLDEN
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The motion to withdraw is **moot** in light of the subsequent substitution filed.

15. 9:00 AM CASE NUMBER: C25-02505
CASE NAME: TRUDY LOGAN VS. ONPOINT AMERISAFE SERVICES, LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JASON D. FRIEDMAN
FILED BY: ONPOINT AMERISAFE SERVICES, LLC
TENTATIVE RULING:

Jason Friedman's application to appear pro hac vice is **granted**.

16. 9:00 AM CASE NUMBER: L24-04469
CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG
***HEARING ON MOTION IN RE: FOR STAY OF ENFORCEMENT JUDGMENT PENDING APPEAL**
FILED BY: CHONG, MICHAEL W
TENTATIVE RULING:

This motion is **moot** in light of defendant's express abandonment of his appeal and the dismissal of the appeal.

17. 9:00 AM CASE NUMBER: MSC21-01164
CASE NAME: KIRK PATRICK ANTHONY JONES, JR. VS. REAL TIME STAFFING SERVICES, LLC
***HEARING ON MOTION IN RE: COMPLIANCE AND DISTRIBUTION STATUS SET BY THE COURTROOM.**
FILED BY:
TENTATIVE RULING: